BY ORDER OF THE COMMANDER
EIELSON AIR FORCE BASE (PACAF)

EIELSON AIR FORCE BASE
INSTRUCTION 31-116

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Security

EIELSON AFB MOTOR VEHICLE TRAFFIC SUPERVISION

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This instruction implements AFPD 31-1, *Integrated Defense*. All motor vehicle and traffic instructions not specifically covered by this instruction but which are covered by the joint traffic regulation, AR 190-5/AFI 31-218(I), Motor Vehicle Traffic Supervision, or the Alaska Criminal and Traffic Law Manual, are in force and enforceable on this installation. In those cases where the Eielson Air Force Base (EAFB) Motor Vehicle Code and the Alaska Code Annotated are in conflict, the EAFB Motor Vehicle Code will have precedence on EAFB. Violations of this instruction, the joint traffic instruction, and the Alaska Code, will be disposed of in accordance with AFMAN 31-116 and the Uniform Code of Military Justice (UCMJ), Federal or assimilated law. This instruction applies to Air National Guard (ANG), the Air Force Reserve Command (AFRC) and their units, all personnel, military and civilian, employed, contracted, quartered on, or visitors to EAFB. Ensure that all records created as a result of processes prescribed in this publication are maintained IAW Air Force Instruction (AFI) 33-322, *Records Management and Information Governance Program*, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional chain of command.

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Chapter 1

INTRODUCTION

1.1. 354th Fighter Wing Commander (354 FW/CC) Establishes and manages the local installation traffic supervision program. The 354 FW/CC has broad authority to regulate the movement of traffic and personnel on their installations and develops local procedures to ensure safe pedestrian and vehicle traffic. To meet traffic safety objectives, 354 FW/CC integrates safety, engineering, legal, and law enforcement resources into their traffic review and planning processes.

1.2. Defense Force Commander (DFC). The DFC is the 354 FW/CC's principal advisor on issues pertaining to the safe movement of personnel and traffic. The DFC exercises staff responsibility for directing, regulating, and controlling traffic, and enforcing installation rules pertaining to traffic control. DFC shall be responsible to affect efficient, cooperative liaison with civil enforcement officials in the local area.

1.3. Security Forces Security Forces will: Enforce AFMAN 31-116, higher headquarters directives, this supplement, Federal and State of Alaska traffic laws, which are applicable to EAFB. Security Forces are responsible for the enforcement of all traffic laws and instructions on EAFB.

1.4. Persons Operating Motor Vehicles, Self-Propelled Devices, and Pedestrians: All persons operating a motor vehicle, self-propelled devices, and pedestrians on EAFB will be familiar and comply with AFMAN 31-116 and this supplement.

1.5. The 354th Fighter Wing Vice Commander (354 FW/CV). 354th Mission Support Group Commander (354 MSG/CC) and the 354th Mission Support Group Deputy Commander (354 MSG/CD) are the designated representatives of the 354 FW/CC for all matters covered under this supplement. 354th Security Forces Squadron Reports and Analysis (354 SFS/S5R) section has the authority to suspend or revoke the driving privileges of any individual operating a vehicle on the installation administratively, due to point accumulation or citied traffic violations.

Chapter 2

DRIVING PRIVILEGES

2.1. Requirements for Driving Privileges:

2.1.1. Proof of current vehicle insurance must be in the vehicle at all times while on the installation. Alaska Statute 28.22.101 requires the owner of a motor vehicle maintain a liability insurance policy with $50,000 coverage of bodily injury or death of one person in one accident, and, $100,000 of bodily injury or death of two or more persons in one accident as well as $25,000 destruction of property of others in one accident.

2.1.2. Lawfully be licensed to operate motor vehicles.

2.1.3. Comply with installation and state registration requirements.

2.1.4. Operators of Government motor vehicles must have proof of authorization to operate the vehicle.

Chapter 3

CITATION ENFORCEMENT

3.1. Eielson AFB will adhere to the following when issuing citations:

3.1.1. DCV Form 1805's will be issued to all motor vehicle operators. **NOTE:** Exception, DD Form 1408's will be issued when the violation refers to only military regulations and not statute laws.

3.1.2. Proof of Compliance:

3.1.2.1. Violators cited via 1408 or 1805, for "Proof of Compliance" will be given 72 hours to report to BDOC, Building 3134, with the proof of compliance citation. However, for the citation to be reduced to a "Warning", the proof for the cited violation must have been in effect at the time of the violation. If the proof of the violation was not in effect at the time, the violator will be subject to point assessment or suspension/revocation of driving privileges according to **Table 5.1** and **Table 6.1**

Chapter 4

INSTALLATION TRAFFIC CODES

4.1. Legal Entry and Exit to the Installation

4.1.1. Entry to EAFB shall be conducted according to AFI 31-101, 354 FWI 31-1 and AFMAN 31-113.

4.1.2. No person is authorized to enter the installation except when directed to do so by an Installation Entry Controller.

4.1.3. No person is authorized to exit the installation if there is a traffic control device located in the outbound lane.

4.2. Care Required and Speed Limits.

4.2.1. The limits specified in this paragraph shall be the maximum allowable speeds, except for emergency vehicles responding to an emergency, or when hazards dictate lower speeds. The operators of motor vehicles are subject to speed checks by Security Forces using radar or other approved speed measuring devices/methods. Speed limits are as follows:

4.2.2. Main through streets/roadways as posted.

4.2.3. 15 miles per hour in the base family housing areas/school zones unless otherwise posted.

4.2.4. 10 miles per hour in all parking areas, including school parking areas, unless otherwise posted.

4.2.5. 10 miles per hour when approaching/overtaking troop movements, to include personnel conducting physical fitness training.

4.2.6. When passing an emergency vehicle on the side of the road, and emergency warning lights are activated, vehicles will slow to 10 mph below the posted speed limit. This speed limit has been established as a reasonable and prudent speed for officer safety.

4.2.7. ATVs and snowmobiles will not exceed 10 miles per hour when on the main base/cantonment area. **Exception:** Security Forces members performing official duties.

4.2.8. Basic Rule. A person operating a vehicle of any type on EAFB shall do so in a careful and prudent manner, and at a rate of speed no greater than is reasonable and prudent under the conditions at the point of operation. Drivers must take into account the amount of traffic, condition of brakes, weight of vehicle, grade and width of roadway, condition of surface, freedom of obstruction to view ahead, and present weather conditions. Vehicle operators will exercise caution and reduce speed when:

4.2.9. Approaching or crossing any intersection.

4.2.10. Traveling on any narrow, winding, or unimproved roadway.

4.2.11. Any special hazard exists with respect to pedestrians.

4.2.12. Approaching any railroad crossing.

4.2.13. Backing a vehicle.

4.2.14. Traveling in construction areas.

4.2.15. Speed Contests. No contests for speed between motor vehicles of any kind or exhibition of speed shall be held on EAFB unless they are approved by the 354 MSG/CC or designee in advance.

4.2.16. Improper Start or Acceleration. No person shall cause a vehicle to be placed into motion or acceleration while in motion in a manner as to cause the drive wheels to break traction with the road surface.

4.2.17. Stopping for Reveille or Retreat. The driver of a vehicle shall immediately and safely pull to the right shoulder of the roadway or traffic lane and stop when Reveille or Retreat is sounded. The vehicle will not be placed into motion until the last note of all music played is sounded or unless directed by an authorized traffic controller.

4.3. Driver Distractions.

4.3.1. Operators of POVs on EAFB and GOVs on or off EAFB are prohibited from using cell phones or other hand-held electronic devices unless the vehicle is safely parked or they are using a hands-free device. **Exception:** receiving or placing calls by emergency responders in performance of duties from emergency vehicles.

4.3.2. Headphones and earphones. The wearing of any listening devices is prohibited while driving a motor vehicle on EAFB roadways. Use of those devices impairs driving and masks or inhibits the recognition of emergency signals, sirens, alarms, announcements, the approach of vehicles, human speech, and outside noises in general. Exception: Hearing aids, single ear-piece hands-free phone devices, and motorcycle driver/passenger intercom devices are allowed.

4.3.3. Screened Devices. While operating a motor vehicle it is unlawful to have a television, monitor, or similar screen device operating in the view of the driver. This includes texting while driving. **Exception:** Vehicles with a Global Positioning Satellite navigation system providing verbal directions for travel, is authorized.

4.3.4. This does not apply to portable cellular telephones or personal data assistants being used for verbal communication or displaying caller identification information; equipment that is displaying only, audio equipment information, functions, and controls; vehicle information or controls related to speed, fuel level, battery charge, and other vehicle safety or equipment information; navigation or global positioning; maps; visual information to enhance or supplement the driver's view forward, behind, or to the sides of the motor vehicle for the purpose of maneuvering the vehicle.

4.4. Vehicle Operation on Streets.

4.4.1. Reckless Driving. Any person who operates any vehicle that creates a substantial and unjustifiable risk to the safety of person or property will be charged with reckless driving.

4.4.2. Negligent Driving. Any person who operates any vehicle in a manner that creates an unjustifiable risk and endangers the safety of persons or property will be charged with negligent driving.

4.4.3. Stop Upon Direction of Police Person. Any person operating a motor vehicle on EAFB shall immediately and safely move the vehicle to the right side of the roadway or parking area and come to a complete stop when directed to do so by Security Forces personnel. This includes other emergency vehicles as described in **Attachment 1** of this instruction.

4.4.4. Limitations on Backing. The driver of a vehicle shall not back the vehicle unless such movement can be made with reasonable safety and without interfering with other traffic.

4.4.5. Spotters. Vehicles without a clear view to the rear should use a spotter while backing, if available. Spotters must dismount from the interior of the vehicle to a position that can be easily observed by the vehicle operator. The spotter shares the responsibility in an accident/situation where their actions are clearly contributory to the accident. **Exception:** Government vehicles will use a spotter, if available.

4.4.6. Government motor vehicle operators will sound the horn before backing.

4.4.7. "U" Turns. "U" turns will not be made on EAFB unless directed to do so by official traffic controller. **Exception:** Emergency vehicles may perform a "U" turn in performance of official duties.

4.4.8. Unless operating an emergency vehicle during an emergency response, all vehicle operators will obey all traffic control devices including traffic lights, stop signs, regulatory signs, road markings (traffic cones, lines, barricades, tape, etc.), Security Forces, and traffic control personnel.

4.4.9. The driver of a vehicle approaching a stop sign or stoplight shall stop before entering the crosswalk or at a clearly marked stop line. If no line or crosswalk exists, the vehicle shall come to a complete stop before entering the intersection.

4.4.10. Vehicles approaching a yield right-of-way sign must yield to all cross traffic, which has the right-of-way. If necessary, vehicles will stop before entering the intersection.

4.5. Stopping When Exiting From Alleys, Buildings, Parking Areas, or Secondary Roads. The driver of a vehicle emerging from an alley, building, parking area, or secondary road shall stop immediately prior to exiting and shall yield the right-of-way to pedestrians and other vehicles.

4.6. Radio Volume. Personnel operating motor vehicles on EAFB will maintain vehicle stereo and radio equipment at a low enough volume to ensure the capability of hearing traffic warning signals, horns, alarms, sirens, etc., to aid in the avoidance of motor vehicle accidents, to avoid disturbing the general public or creating sound pollution.

4.7. Obscene Graphics. Vehicles will not be painted or marked with obscene words, figures, slogans, or bumper stickers, which distract other vehicle operators.

4.8. Fleeing or Attempting to Elude Police.

4.8.1. No person shall willfully fail or refuse to bring their vehicle to a stop, or otherwise flee or attempt to elude a pursuing Security Forces vehicle, civil police vehicle, police officer, or other properly marked authorized emergency vehicle, or refuse to comply with a lawful order or direction from such police or peace officer.

4.8.2. The signal given by the police may be by hand, voice, whistle, emergency light, or siren.

4.8.3. The police officer giving such signal shall be in uniform, or in any vehicle used by the Security Forces for the purpose of giving such a signal.

4.9. Motorcycles/Mopeds/Motor Driven Cycles:

4.9.1. Operation. A person operating a motor-driven cycle will only ride upon the permanent/regular seat attached, feet will rest upon footrests of the cycle, and passengers will not be carried unless the cycle is designed for two or more people and footrests are also provided for the passengers. No passenger (human or animal) or cargo may ride or be carried in front of the operator.

4.9.2. Protective Equipment. Protective Equipment for Motorcycle/Moped/ATV/Snowmobile operators will be IAW AFI 91-207, *The US Air Force Traffic Safety Program*. Cycle operators and passengers will use the following equipment while operating a motor-driven cycle on the installation and such use is required for all military members while operating off the installation:

4.9.3. Headgear, properly worn and fastened, regardless of the individual's age and be approved by the Department of Transportation.

4.9.4. Riders are encouraged to select PPE that incorporates florescent colors and retro-reflective material.

4.9.5. Footwear, sturdy over-the-ankle footwear that affords protection for the feet and ankles. Sneakers, sandals, shower shoes, clogs, and like footwear is prohibited.

4.9.6. Eye Protection, both driver and passenger must have impact resistant eye protection, such as face shield, goggles, or safety glasses, (normal prescription eyeglasses/sunglasses will not suffice). A windshield does not constitute proper eye protection. Passengers must also be so equipped.

4.9.7. Headlight(s) are to be turned on and operational at all times during operation.

4.9.8. Full-length trousers.

4.9.9. Full fingered gloves.

4.9.10. Long sleeved shirts or jackets.

4.9.11. Additional Rules of the Road. Operators of motor-driven cycles will comply with all directives governing motor vehicle use and:

4.9.12. Will not operate any motorcycle around animals in any manner, which may excite or frighten animals.

4.9.13. Will not operate motor-driven cycles near residences except on approved street or driveways. They will not be operated on lawns, sidewalks, fields, or other unpaved areas. Some exceptions authorized by the 354 MSG/CC are outlined in 354 FWI 32-7002, *Use and Control of Off-Road Vehicles*.

4.9.14. Will possess an appropriately endorsed state operator's license, if required. Military personnel must meet all required safety course requirements and possess the Motorcycle Safety Foundation card.

4.9.15. Will not lend their motorcycle to another motorcycle operator without first ensuring that operator has completed all required training, and is properly insured and licensed.

4.9.16. Will not allow children under the age of four to be carried as a passenger on a motor-driven cycle unless carried in a specifically designed and approved child seat for that vehicle. Children who are not tall enough to naturally reach the foot pegs may not be carried as a passenger on a motor-driven cycle.

4.10. Restraint Systems. The wearing of restraint systems (seat belts) by operators and passengers of a POV and a GOV, excluding buses, is mandatory whenever the vehicle is in motion. **Exception:** Wearing of restraint systems is not required for certain POVs manufactured prior to vehicle model year 1966.

4.10.1. There may be no more occupants in any vehicle than there are individual restraint systems. Only one person may use any single seat belt or child restraining device at a time.

4.10.2. Security Forces personnel are authorized to conduct traffic stops and safety checks for the sole purpose of checking all vehicle occupants for compliance with the seat belt and child restraint policy.

4.11. Vehicle Operation Off Streets. 354 FWI 32-7002 governs policies, procedures, and operating conditions for off-road use of vehicles.

4.11.1. Vehicles will not be operated off maintained roadways on EAFB, unless on designated four-wheeled vehicle trails and then only when authorized by the 354 MSG/CC.

4.11.2. Vehicles may be permitted off-road when it is necessary for loading/unloading of heavy cargo or equipment, provided such operation can be performed safely, without damage to seeded areas or other property, or when directed by an official traffic controller.

4.11.3. Vehicles will not be operated on any sidewalk or sidewalk areas, except on a permanent or authorized temporary driveway.

4.12. Operation of ORV on Roadways. Snowmobiles, all-terrain vehicles, and other non-licensed motor vehicles may not be operated on roadways, sidewalks, lawns, or unimproved areas on EAFB. **Exception:** These vehicles may be driven by the most direct route to and from areas designated as authorized riding areas and to the base gas station.

4.13. Emergency Vehicle Operation.

4.13.1. The following list of vehicles are considered to be Emergency Response Vehicles on Eielson AFB.

4.13.1.1. Ambulances (Medical units will comply with the provisions of Air Force medical directives.)

4.13.1.2. Command Vehicles

4.13.1.3. Crash Response Vehicles

4.13.1.4. Disaster Preparedness Vehicles

4.13.1.5. Explosive Ordinance Vehicles

4.13.1.6. Fire Equipment

4.13.1.7. Security Forces and Military Police Vehicles

4.13.1.8. Air Force Office of Special Investigation Vehicles

4.13.1.9. Alert Vehicles during Response

4.13.1.10. State and City Emergency Vehicles

4.13.2. Drivers of emergency vehicles will obey all traffic laws, however, in emergency cases, such as emergency calls, fire response, and law enforcement pursuits, emergency vehicle drivers must adhere to the following guidance:

4.13.2.1. Park in any location that does not create a safety hazard.

4.13.2.2. When parking an emergency vehicle, operators may park the vehicle with the engine running as long as the operator takes all safety precautions. That is, ensures the vehicle is placed in park, the hand brake is engaged (except during extremely cold temperatures), and if on an up/downgrade, the front wheels are turned into the curb or side of the roadway).

4.13.2.3. Proceed past a red stop signal or sign, only after slowing down as necessary for safe operation.

4.13.2.4. High Speed Pursuit driving by SF law enforcement and security mobile patrols shall be conducted by exercising due regard for life, property and current road and weather conditions. **Note:** Continuing a pursuit off the installation depends on the elements of the situation, and will continue at the discretion of the SFS Flight Chief, or higher authority. Upon engagement by civilian authorities, Security Forces will not actively participate in the pursuit.

4.13.2.5. In emergency situations requiring any of those actions indicated above, the driver must sound an audible signal by siren or bell or display emergency lights as appropriate.

4.13.3. The operator of an emergency vehicle will not assume the right-of-way based solely on the fact that the emergency equipment (flashing light/siren) is in operation.

4.13.4. This instruction will not protect drivers of emergency vehicles from the consequences of recklessness or wanton disregard for the safety of others.

4.13.5. Owners or drivers of POVs are prohibited from using any red lights, siren, or bell, which may create the appearance of an emergency vehicle.

4.14. Alcohol Related Crimes Other than DUI.

4.14.1. Aiding and Abetting the crime of DUI. Any person who assists, encourages, advises, instigates, counsels, or commands an intoxicated person to drive a motor vehicle, shall be charged of the crime as a conspirator, and his/her base driving privileges shall be revoked IAW with this instruction. This includes any person in control of a motor vehicle (owner/user) who knowingly allows an impaired or intoxicated person to operate that vehicle.

4.14.2. Minor Consumption/Possession. All offenses will be documented via DD Form 1920, *Alcohol Incident Report* or AF Form 3545, and suspension/revocation action will be taken in accordance with **Chapter 6** of this instruction. This includes all minor consumption incidents; the use of a vehicle during the incident is not a prerequisite.

4.14.3. Open Containers. A person may not drive a motor vehicle when there is an open bottle, can, or other receptacle containing an alcoholic beverage in the passenger compartment of the vehicle. If a bottle, can or other receptacle has been opened, or the seal broken, such container must be kept in the trunk of the vehicle or behind the last upright seat in a recreational vehicle, station wagon, hatchback or similar trunk-less vehicle.

4.15. Pedestrians and Bicycles.

4.15.1. Pedestrians Rights and Duties. Pedestrians shall be subject to traffic control at intersections as provided in this instruction, except as noted. For the purpose of this instruction, runners and joggers are considered to be pedestrians.

4.15.2. When crossing at other than marked crosswalks, pedestrians will cross at right angles to the edge of the roadway, giving the right of way to all vehicles.

4.15.3. IAW Alaska state law, pedestrians have right of way at crosswalks. Pedestrians must wait for vehicles to stop and then cross. Vehicles MUST stop when a pedestrian is waiting to cross.

4.15.4. May not operate a bicycle on any sidewalk, unless the bicyclist is a child and/or the bicycle is equipped with training wheels.

4.15.5. Must dismount and walk bicycles across the roadway when using crosswalks.

4.15.6. May not operate bicycles on seeded areas.

4.15.7. Will not wear earphones/headsets with any type of radio/player device while riding.

4.16. Bicycles Must Be Equipped With The Following:

4.16.1. A permanently attached seat.

4.16.2. A brake which will enable the operator to stop the bicycle within 25 feet from a speed of 10 miles per hour on dry, level, clean pavement.

4.16.3. Safety Helmets. All persons who ride a bicycle, including motor drive bicycles, inline skates, roller skates, or skateboards on EAFB shall wear a properly fastened and approved (e.g., Consumer Product Safety Commission (CPSC), American National Standards Institute (ANSI) or Snell Memorial Foundation) bicycle helmet. Workers riding bicycles in areas that require the use of ANSI approved helmets (hard hats) for protection from falling and flying objects are allowed to use those helmets if properly fastened under the chin.

4.17. General Rules for Stopping, Standing, or Parking.

4.17.1. On the side of the street facing oncoming traffic. Vehicles parked at an angle within parking areas will not be parked facing the flow of traffic.

4.17.2. Using two or more designated parking spaces. Vehicles parked in places marked shall be within the lines painted, or if unmarked, not to extend beyond that area reasonably necessary for the vehicle.

4.17.3. Off paved areas or any seeded or unimproved area anywhere on EAFB, unless such areas have been specifically designated and properly marked for parking. **Exception:** Maintenance and emergency vehicles may be temporarily parked in these areas while performing official duties.

4.17.4. Race/stock cars, unmounted truck type campers or unmounted camper shells, utility, and special purpose vehicles will not be parked along roadways, curbsides, or in designated vehicle parking areas or spaces. Such vehicles will only be parked in the Recreational Vehicle Storage Lot.

4.17.5. In driveways or parking spaces in such a manner that any portion of that vehicle extends onto or blocks a roadway or sidewalk so as to hinder pedestrian or vehicular traffic.

4.17.6. In a space designated specifically for handicapped.

4.17.7. Vehicles impede snow removal operations, provided the parking lot/ roadway signs have been posted at least 24 hours in advance.

4.17.8. Residents will make maximum use of assigned garages, parking spaces, and/or driveways. Curbside parking should be limited to the fullest extent possible and will be with the flow of traffic. Curbside parking is permitted in the base housing areas as follows:

4.17.8.1. On north-south streets, curbside parking is authorized on the west side of the street.

4.17.8.2. On east-west streets, curbside parking is allowed on the north side of the streets with the exception of Broadway Avenue. Curbside parking is not authorized on Broadway Avenue.

4.17.8.3. Parking on Deborah Loop, Edna, Hayes, and Mather Streets is only authorized in designated parking spaces for quarters located in these areas.

4.17.8.4. On the north side of Polaris Avenue, with the following exceptions: There will be no parking on the "S" curves.

4.17.8.5. Moose Lake Estates and French Creek Village is authorized only on the same side of the street as the sidewalks and mailboxes.

4.17.8.6. Personnel residing in the same cul-de-sac as the distinguished visitors quarters (buildings 5281 and 5282) are authorized to park against the flow of traffic due to the location of the HBO units.

4.17.8.7. POVs will not be parked in the parking lot of the Commissary, Base Exchange, Post Office, or other community area in excess of 48 hours without first notifying and obtaining approval from the facility manager.

4.17.8.8. POVs displaying "For Sale" or “For Rent” signs will only be parked for display purposes in areas designated by the 354 MSG/CC. The designated area is the north end of the re-sale lot located across from the USO, on North Street and East Loop.

4.17.8.9. RVs must be maintained in a presentable manner that does not detract from the attractiveness of the housing area. Housing tickets may be issued for unsightly areas.

4.17.8.10. Removal of Illegally Parked or Stopped Vehicles. Whenever Security Forces discovers a vehicle, which appears to be abandoned upon the roadway, they are authorized to take appropriate action to impound the vehicle.

4.17.8.11. All charges incurred from the impoundment or removal of a vehicle from the base which constitutes a hazard or obstruction to traffic, is determined to be abandoned, or is otherwise unlawfully parked shall be paid by the owner of the vehicle which is removed.

4.17.8.12. Reserved Parking. The 354 FW/CC establishes the reserved parking policy for EAFB based on number of available spaces, facility design and layout, traffic flow, and number of vehicles using facilities.

4.17.8.13. Special Function Parking. The Mission Support Group Commander or Deputy Commander may authorize parking for special functions (e.g., base open house, sporting events) in areas not normally authorized.

4.18. Reporting Vehicle Traffic Accidents.

4.18.1. Anyone involved with a vehicle accident on EAFB must conduct the following:

4.18.2. Immediately report the incident to BDOC at 377-5130.

4.18.3. Any vehicle operator striking an unattended vehicle, sign, fixture, or structure will make every possible effort to locate or identify the property owner or driver of the vehicle and/or leave a note containing their name, phone number, and explanation.

4.18.4. Remain at the scene unless directed differently by Security Forces.

4.18.5. Not move any vehicles involved in the accident unless directed to do so by Security Forces personnel.

4.18.6. Fully cooperate with investigating Security Forces personnel. Answer any questions truthfully and provide a written statement describing what happened, if requested.

4.18.7. Witnesses to an accident must remain at the scene of the accident and advise the Security Forces, upon their arrival, that they witnessed the accident. If a witness cannot remain at the scene, the individual must immediately notify BDOC that they witnessed the accident.

4.18.8. Government Vehicle Operators will, in addition to the above:

4.18.9. Refrain from making oral or written statements to anyone involved in the accident, or to the agents or representatives of anyone involved in the accident, regarding cause of the accident, liability, the possibility of pursuing a claim, or the possibility of approval of any claim.

4.18.10. Fully cooperate with Security Forces or other law enforcement personnel investigating the accident.

4.18.11. Complete SF 91, *Operator's Report of Motor Vehicle Accident*, at the scene of the accident as soon as possible and deliver it to the Base Transportation Officer no later than 24 hours after the accident.

4.19. Emergency Road Repairs. An inoperative vehicle will not be left unattended in a parking area, on the shoulder of any roadway or in any other unauthorized area on EAFB for more than 48 hours. In any case where a vehicle must be left unattended, the owner should notify BDOC at 377-5130 and explain why the vehicle is unattended.

Chapter 5

DRIVING RECORDS AND THE TRAFIC POINT SYSTEM

5.1. Driving Records. Use AFJIS to record vehicle traffic accidents, moving and parking violations, suspension or revocation actions, and traffic point assessments involving military and DoD civilian personnel, their family members, and other personnel operating motor vehicles on the installation.

5.2. The Traffic Point System. The traffic point system provides a uniform administrative device to impartially judge service member's driving performance. This system is not a disciplinary measure or a substitute for punitive action. Furthermore, this system is not intended to interfere in any way with the reasonable exercise of the 354 FW/CC's prerogative to issue, suspend, revoke, deny, or reinstate installation driving privileges.

5.3. Point System Application. The use of the point system and procedures prescribed herein are mandatory.

5.3.1. The point system applies to civilian personnel operating government vehicles on and off the installation and to their POVs driven on-base. It applies to military personnel operating GOVs and POVs on or off EAFB and to dependents, civilian employees, and all other individuals subject to this instruction operating POVs on EAFB. Unless an individual submits a rebuttal, assess points according to **table 5.1** Also assess points to individuals found guilty by a military or civilian court, or upon payment of fine or forfeiture of pay and allowances, or posted bond or collateral.

5.3.2. Citations marked by the issuing person as warnings will be entered into AFJIS by 354 SFS/S5R, however, points will not be assessed. **Note**: Points will not be assessed for non-moving citations.

Table 5.1. Point Assessment for Moving Violations (See Notes): Not all violations are covered by this instruction.

Violation	Points Assessed
Reckless driving (willful and wanton disregard for the safety of persons or property).	6
Negligent Driving	4
Owner knowingly and willfully permitting a physically impaired person to operate the owner's motor vehicle.	6
Fleeing the scene (hit and run)-property damage only.	6
Driving Under the Influence	6
Driving vehicle while impaired (blood-alcohol content more than 0.04 percent and less than 0.08 percent)	6
Speed contests.	6
Speed too fast for conditions.	2
Speed too slow causing potential safety hazard.	2
Failure of operator or occupants to use available restraint system devices while vehicle is moving.	4
Failure to properly restrain children in a child restraint system while moving (when child is 4 years of age or younger or the weight of the child does not exceed 50 pounds). See note #3	2
One to 10 miles per hour over the posted speed limit. See note #4	3
Over 10 but not more than 15 miles per hour above the posted speed limit.	4
Over 15 but not more than 20 miles per hour above the posted speed limit.	5
Over 20 miles per hour above the posted speed limit.	6
Following too close.	4
Failure to yield the right of way to emergency vehicle.	4
Failure to stop for school bus or school-crossing signals.	4
Failure to obey traffic signals or traffic instructions of an enforcement officer or traffic warden; or any official regulatory traffic sign or device requiring a full stop or yield of right of way; denying entry; or requiring direction of traffic.	4
Improper passing.	4
Failure to yield (no official sign involved).	4
Improper turning movements (no official sign involved).	3
Wearing of headphones/earphones while operating motor vehicle, bicycle, skates, or skateboard.	3

Failure to wear an approved helmet and/or eyewear while operating or riding on a motorcycle, MOPED, or a three- or four-wheel vehicle powered by a motorcycle-like engine	3
Improper overtaking.	3
Other moving violations (involving driver behavior only).	3
Operating an unsafe vehicle See note #2.	2
Operating a radar detection devices to indicate the presence of speed recording instruments or to transmit simulated erroneous speed (prohibited on DoD installations).	3
Driver involved in accident is deemed responsible (only added to points assessed for specific violations).	1
Notes: 1. When two or more violations are committed on a single occasion, assess the points for the offense having the greater value.	
2. Use this measure for other than minor vehicle safety defects or when a driver or registrant fails to correct a minor defect (for example, a burned out headlight not replaced within the grace period on a warning ticket).	
3. Applies to not using or improper use of a child restraint device, i.e., car seat, infant carrier, booster seat, belt/strap modification (when required by manufacturer) etc. Assess four points when no restraint system of any kind is used.	

5.4. Point System Procedures.

5.4.1. Reports of moving traffic violations recorded on DD Form 1408 or DD Form 1805 will serve as a basis for determining point assessment.

5.4.2. On receipt of DD Form 1408 or other military law enforcement report of a moving violation (e.g., AFMAN 31-116) the unit commander or designated supervisor will conduct an inquiry. The commander will take or recommend proper disciplinary or administrative action.

5.4.3. Distribute citation copies and process point assessments IAW **paragraph 5.3**

5.4.4. 354 FW/CCs may require the following driver improvement measures as appropriate:

5.4.5. Advisory letter through the unit commander or supervisor to any person who has acquired six traffic points within a six-month period.

5.4.6. Counseling or driver improvement interview by the unit commander of any person who acquires more than six but less than 12 traffic points within a six-month period.

5.4.7. Referral for medical evaluation when a driver, based on reasonable belief, appears to have mental or physical limits that had, or may have had, an adverse effect on driving ability.

5.4.8. Attendance at a driver improvement program to improve driving skill, awareness, or attitude.

5.4.9. Referral to an alcohol or drug treatment or rehabilitation facility for evaluation, counseling, or treatment. This action is required for active duty military personnel in all cases in which alcohol or other drugs are a contributing factor to a traffic citation, incident, or accident.

5.4.10. The 354 FW/CC may suspend or revoke driving privileges as provided by this instruction regardless of whether these improvement measures are accomplished.

5.4.11. Notify in writing anyone whose driving privileges are suspended or revoked (for one violation or an accumulation of 12 traffic points within 12 consecutive months, or 18 traffic points within 24 consecutive months). 354 MSG/CC or designee will determine suspension and revocation periods for offenses not covered in **table 6.1**; however, any revocation must be for a period of 6 months or more. The 354 MSG/CC or designee may impose a longer suspension or revocation period (to include offenses in **table 6.1**) based on the person's overall driving record. Consider the frequency, flagrancy, and severity of moving violations, and the response to previous driver improvement measures. In all cases, military members must successfully complete a prescribed course in remedial driver training before reinstatement of driving privileges.

5.4.12. Points assessed against a person remain in effect for point accumulation purposes for 24 consecutive months.

5.5. Disposition of Driving Records.

5.5.1. If persons are transferred to another Air Force installation their driving records will be forwarded through AFJIS to the DFC of the gaining installation. The gaining DFC should coordinate with applicable commanders and continue any Air Force suspension or revocation based on intoxicated driving or accumulation of traffic points. Traffic points for persons transferred will continue to accumulate.

5.5.2. 354 SFS/S5R will maintain records of military and civilian personnel. Driving records remain active in the case of immediate reenlistment, change of officer component, or military and civilian retirement when continued vehicle registration is authorized.

Chapter 6

ADMINSTRATIVE ACTIONS

6.1. Traffic Law Enforcement. Traffic laws and instructions are written and enforced to ensure a safe, orderly, predictable flow of traffic. The Security Forces, under the supervision of the DFC, are responsible for the enforcement of all traffic laws and instructions on this base. The DFC shall be responsible to effect efficient, cooperative liaison with civil law enforcement officials in the local area.

6.1.1. It shall be unlawful to interfere with any Security Forces person while such Security Forces person is investigating accidents, traffic violations, or citing persons for such violations. All questions concerning investigations, traffic citations, or the conduct of security forces personnel shall be directed to the Security Forces Operations Superintendent.

6.1.2. Persons subject to the UCMJ are subject to administrative action or trial by courts-martial for violations of the provisions of that manual, and this or other instructions or directives pertaining to traffic.

6.1.3. Persons not subject to the UCMJ may be subject to administrative action or trial before the United States Magistrate for the violations of the provisions of this instruction and the laws of the State of Alaska.

6.2. Suspension or Revocation of Driving Privileges.

6.2.1. The 354 FW/CC may suspend or revoke installation driving privileges for lawful reasons both related and unrelated to traffic violations or safe vehicle operations.

6.2.2. Revocation of base driving privileges will also include Off Road Vehicles (ORV) and all motorized vehicles to include GOVs.

6.2.3. Preliminary suspension letters must be signed by the 354 MSG/CC or designee.

6.2.4. The 354 MSG/CC or designee has the prerogative of suspending base driving privileges of personnel who have documented unsafe driving records. Such suspensions may be made without regard to point assessments made under the system; however, each case of this type will be handled on an individual basis.

6.2.5. 354 FW/CC can suspend driving privileges for serious violations or when lesser measures fail to improve a driver's performance. The commander may also suspend or revoke driving privileges for up to 12 months if a driver continually violates installation parking standards, or habitually violates other standards considered non-moving in nature.

6.2.6. The 354 FW/CC has discretionary authority and may withdraw anyone's authorization to operate a GOV or POV on the installation. In cases involving mandatory suspensions of installation driving privileges (including, but not limited to, seat belt violations, certain moving traffic violations, and accumulation of traffic points), all group, squadron, detachment, and section commanders on Eielson AFB, have been delegated the authority to administratively suspend installation driving privileges for periods not to exceed 90 days, and to impose conditions of probation upon driving privileges for periods not to exceed six months. Commanders may exercise this authority with respect to all military members and civilians under their command, as well as to family members of such military members. Any suspension over 90 days, any probation over 6 months, and all revocations may only be administered by the Mission Support Group Commander or Deputy Commander.

6.2.7. 354 SFS/S5R will immediately complete revocation of installation driving privileges pending resolution of a DUI which involves active duty military personnel, their family members, retired members of the military service, and Department of Defense (DoD) civilian personnel. This applies regardless of the geographic location of the DUI incident. The 354 FW/CC can only suspend privileges of non-DoD affiliated civilians for incidents occurring on the installation or in the areas subject to their military traffic jurisdiction. After a review of the available evidence, a revocation of installation driving privileges will be issued pending resolution of the DUI incident under the circumstances outlined below:

6.2.8. Refusal to take or complete a lawfully requested chemical test to determine blood alcohol content (BAC) or breath alcohol content (BrAC) for alcohol or other drugs.

6.2.9. Operating a motor vehicle with BAC or BrAC of 0.08 percent by volume or higher.

6.2.10. An arrest report or other official document reasonably showing a DUI occurred.

6.2.11. A preliminary driver revocation verbal order will be served to the individuals listed for the above reasons and are arrested off the installation by civil or other military authorities. The following procedures apply:

6.2.12. When the Base Defense Operations Center (BDOC) is notified of an off-base incident, he/she will obtain a preliminary driver revocation verbal order, and complete an AF Form 3545, Incident Report, with all pertinent information to include probable cause, the results of any behavioral tests, and when appropriate, refusal to submit to or fully complete a chemical test.

6.2.13. In the case of off base DUIs, it may not always be possible to obtain the desired information from civilian law enforcement. However, the fact that the Security Forces were officially notified of an off-base DUI apprehension or charge is sufficient to warrant issuance of a preliminary driver revocation verbal order. The Security Forces member receiving the notification will complete a 354 SFS blotter entry and AF Form 3545, Incident Report, containing available pertinent information to fulfill the preliminary revocation apprehension documentation requirement.

6.2.14. The appropriate unit commander or designee, sponsor, or employer will be notified immediately and arrangements will be made to have a preliminary driver revocation verbal order immediately served to the individual concerned, to be effective as of the time of apprehension.

6.2.15. The unit commander or designee, sponsor, or employer (after coordination with Security Forces) will notify the individual to report to BDOC or 354 SFS/S5R, as soon as possible but no later than 72 hours, for issuance of the written preliminary revocation letter and acknowledgement of terms.

6.2.16. The preliminary driver revocation verbal order will remain in effect until the 354 MSG/CC has made a determination whether to uphold or rescind the order subject to the instructions contained in the preliminary driver revocation verbal order.

6.2.17. The 354 MSG/CC through 354 SFS/S5R will immediately revoke driving privileges for a period of not less than one year in the following circumstances:

6.2.18. A person is lawfully detained for intoxicated driving and refuses to submit to or complete tests to measure blood alcohol or drug content as required by the law of the jurisdiction or this instruction.

6.2.19. A conviction, non-judicial punishment, or a military or civilian administrative action resulting in the suspension or revocation of a driver's license for DUI. Official documentation is required as the basis for this type of revocation action.

6.2.20. When a serious incident involving a motor vehicle occurs and the 354 FW/CC determines immediate revocation of driving privileges is required to preserve public safety or the good order and discipline of military personnel.

6.2.21. When temporary suspensions are followed by revocations, compute the revocation period from the original suspension date, exclusive of any period during which full driving privileges were restored pending resolution of charges.

6.2.22. Operating a vehicle while installation or state driving privileges are suspended/revoked will result in a two year driver revocation.

6.2.23. 354 MSG/CC through 354 SFS/S5R may impose multiple suspensions to run consecutively.

6.2.24. 354 SFS/S5R will submit the Suspension, Revocation, and Barment roster bi-monthly. Indicating those personnel whose driving privileges have been suspended or revoked to the Visitor Control Center and Security Forces Operations section. The roster will be posted at BDOC, Hursey Gate, and the Visitor Control Center; as well as being updated in DBIDS.

6.2.25. For a complete assessment of suspension, revocation and probation periods refer to **table 6.1** of this instruction.

Table 6.1. Suspension/Revocation periods: Not all violations are covered by this instruction:

Violation	Probation or Suspension
Failure to wear seat belt (1st offense)	7-day suspension
11 MPH and above the posted speed limit in the base housing area or school zone while school is in session or as otherwise posted	30-day suspension
16 MPH and above the posted speed limit base-wide (does not include Richardson Hwy)	30-day suspension
Cell phone use while operating a motor vehicle	30-day suspension
Two (2) expired registration violations in a 12-month period	30-day suspension
Any violation (moving or nonmoving), to include warnings, while on probation	30-day suspension
Three (3) defective vehicle violations within a 12-month period	30-day suspension
An accumulation of 6 traffic citations in a 12-month period	30-day suspension
Operating a motor vehicle with an expired but otherwise valid driver's license	30-day suspension
Open container violation.	30-day suspension
Two (2) seat belt violations within a 12-month period.	60-day suspension
An accumulation of 9 traffic citations in a 12-month period.	60-day suspension
Failure to comply with minimum insurance requirements	90-day suspension
Three (3) expired registration violations within a 12-month period.	90-day suspension
Four (4) defective vehicle violations within a 12-month period	90-day suspension
First offense for minor consumption or possession of alcoholic beverages.	90-day suspension

Five (5) parking violations within a 12-month period.	6-month suspension
Three (3) failure to wear seat belt violations in a one year period.	6-month suspension
Four (4) expired registration violations within a 12-month period.	6-month suspension
Twelve (12) points in a 12-month period	6-month suspension
Eighteen (18) points in an 24-month period	6-month suspension
DUI	1-year suspension
Implied consent violation	1-year suspension
Failure to comply with minimum insurance requirements (second offense or driver involved in accident regardless of fault)	1-year suspension
Second offense for minor consumption or possession of alcoholic beverages.	1-year suspension
Apprehension/detention/arrest for driving while installation or state driving privileges are suspended/revoked	2-year suspension
Second apprehension/detention/arrest for DUI in 5-year period	2-year suspension
Third offense for minor consumption or possession of alcoholic beverages	3-year suspension

6.2.26. 354 FW/CC will honor revocations issued by other 354 FW/CCs regardless of service component affiliation. Revocations remain in effect during reassignment unless the issuing authority terminates the revocation before reassignment. Anyone with suspended or revoked privileges may petition the 354 MSG/CC for full, partial or limited driving privileges.

6.2.27. 354 SFS/S5R will forward revocation, suspension, and driving records to gaining commanders and initiate appropriate staff action when receiving similar records from losing commanders of inbound personnel.

Chapter 7

ADMINISTRATIVE DUE PROCESS FOR SUSPENSIONS AND REVOCATIONS

7.1. Suspension or revocation notification. Individuals who are being considered for base suspension or revocation will be notified in writing and told what action is being taken and the reason for the action.

7.1.1. For active duty military and DoD civilian personnel, a written notice of preliminary suspension for a DUI will be sent to their commander or reasonable equivalent. For non-installation, non-DoD affiliated civilians, a written notice of preliminary suspension for DUI will be presented either in person (preferred) or by certified mail.

7.2. Administrative hearing. Personnel whose driving privileges were suspended or revoked may request an administrative hearing.

7.2.1. If an individual waives their rights for an administrative hearing the suspension or revocation will be in effect at 0700 hours the following day of acknowledgement of written notice.

7.2.2. If an individual plans to request an administrative hearing they will have 7 calendar days to provide a written request after acknowledgement of written notice. If a written request for an administrative hearing is not received within 7 calendar days, suspension or revocation will take effect 8 calendar days after acknowledgement of written notice at 0700 hours.

7.2.3. The request must include the specific relief sought along with specific reasons and support. Pertinent documents, such as a photocopy of a valid state driver's license, evidence, individual/witness statements and/or proof of completion of drug/alcohol education or rehabilitation are a few examples.

7.2.4. All requests must be endorsed by the employer (or other sponsor) or the unit commander of the individual. The request will be addressed to 354 MSG/CC and delivered to 354 SFS/S5R, Room 110, 451 Division Street, Eielson AFB, AK 99702.

7.2.5. At the time 354 SFS/S5R receives the written request, personnel will be afforded the option to choose either an in-person hearing with the 354 MSG/CC or allow the written final assembly of evidence for the 354 MSG/CC to serve as the administrative hearing. Regardless of the type of hearing conducted the personnel’s suspension or revocation will be pending until a decision is made by the 354 MSG/CC. A preliminary suspension for DUI or Refusal remains in effect until the 354 MSG/CC makes a final decision.

7.2.6. 354 SFS/S5R will notify personnel of the date and time of administrative hearing.

7.2.7. Military personnel have the right to present evidence, witnesses and be represented by civilian counsel (at their own expense) or assigned military counsel. Commanders determine the availability of military counsel requests.

7.2.8. DoD civilian employees have the right to have a personal representative present at the administrative hearing in accordance with applicable laws and instructions.

7.2.9. Hearings for DUI or Refusal will cover only the pertinent issues of whether: 1) The law enforcement official had reasonable grounds to believe the person was driving or was in physical control of a motor vehicle while under the influence of alcohol or other drugs; 2) The person was lawfully cited or apprehended for an intoxicated driving offense; 3) The person was asked to submit to a test for alcohol or other drug content of blood, breath, or urine and was informed of the consequences for refusing to take or complete such a test; 4) The person refused to submit to the test for alcohol, breath, or urine; failed to complete the test; submitted to the test and the result exceeded the amount of allowed blood alcohol content; results indicate the presence of other drugs for an on-installation apprehension or in violation of state laws for an off-installation apprehension; and 5) The testing methods used were valid and reliable, and the results accurately recorded and evaluated.

7.2.10. At the conclusion of the written/in-person hearing the offender's driving privileges will either be suspended/revoked for the period stated on the received preliminary suspension letter, MSG/CC may exercise discretion and adjust the period or the pending suspension/revocation will be voided. This decision will be based on the evidence presented at the hearing.

7.2.11. 354 SFS/S5R will notify the individual of the result as soon as possible. If your suspension is upheld you will be provided with the date and time that your suspension/revocation will go into effect.

7.2.12. Military and DoD civilian personnel involved in any DUI motor vehicle incident will be referred to the Substance Abuse Office, Drug and Alcohol Control for evaluation before the restoration of on base driving privileges.

7.3. Restoration of Driving Privileges or Acquittal.

7.3.1. When an official report or finding determines lack of guilt (not guilty) or when charges are dismissed or reduced to an offense not amounting to DUI, vacate the suspension or revocation of driving privileges except when:

7.3.2. The preliminary suspension was based on refusal to take a BrAC or BAC test.

7.3.3. Operating a motor vehicle with a BrAC or BAC of 0.08 percent by volume or higher.

7.3.4. The person was driving or in physical control of a motor vehicle while under another preliminary suspension or revocation.

7.3.5. The individual failed to complete a formally directed substance abuse or driver's training program.

7.3.6. Reinstatement of Driving Privileges. Personnel whose driving privileges were suspended or revoked for a period of 6 months or more for alcohol/drug related offense must apply in writing to the MSG/CC or designee to have their privileges reinstated. Forward the request (endorsed by unit commander), along with pertinent documents, such as a photocopy of a valid state driver's license, proof of completion of drug/alcohol education, and proof of insurance to: 354 SFS/S5R, 451 Division St, Eielson AFB, AK 99702. All other reinstatements of driving privileges are automatic upon completion of the suspension/revocation period.

7.4. Restricted Driving Privileges or Probation.

7.4.1. 354 MSG/CC may authorize partial or restricted driving privileges to those whose authority to drive on military installations was suspended or revoked and will only consider requests in which there is extreme hardship and there are no other workable alternatives. Contact 354 SFS/S5R, 451 Division Street, Eielson AFB, AK 99702, or our organization box at 354 SFS Reports and Analysis for instructions for processing a request.

7.4.2. Individuals will not be granted partial or restricted driving privileges, probation, or reinstatement if their civilian driver's license is under suspension or revocation by the state, international, or host nation licensing authority.

7.4.3. If restricted driving privileges to operate a POV or GOV are granted by the 354 MSG/CC, a copy of such authorization must be in possession of the person granted such restrictions or probation at all times while operating a vehicle on the installation. This authorization letter comes from 354 SFS/S5R. Failure to comply with this requirement will result in the termination of restricted privileges or probation.

DAVID J. BERKLAND, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

Adopted Forms

AF Form 75, Visitor/Vehicle Pass

AF Form 3545, Incident Report

DD Form 1408, Armed Forces Traffic Ticket

DCV Form 1805, United States District Court Violation Notice

DD Form 1920, Alcohol Influence Report

Attachment 2

ORDER OF SUSPENSION/REVOCATION OF INSTALLATION DRIVING PRIVILEGES

Figure A2.1. Order of Suspension/Revocation of Installation Driving Privileges.

DEPARTMENT OF THE AIR FORCE
PACIFIC AIR FORCES

DATE: _____

MEMORANDUM FOR _____ _____
(Subject's Name) (Subject's SSN)

FROM: 354 MSG/CC
354 Broadway Ave Unit 12A
Eielson AFB AK 99702-1897

SUBJECT: Order of Suspension/Revocation of Installation Driving Privileges

1. Reference Air Force Instruction 31-218(I), *Motor Vehicle Traffic Supervision*, and Air Force Manual 31-116, *Air Force Motor Vehicle Traffic Supervision*.

2. You were apprehended, detained, or cited for:

( ) Failure of operator or occupants to wear seatbelt while vehicle is moving:
( ) 7 days; 1st offense. ( ) 30 days; 2nd offense in 12 months.
( ) Unauthorized use of cellular phone while operating a motor vehicle: Using a cell phone while operating a vehicle, without a hands-free device or speakerphone feature.
( ) Speeding 11 MPH above posted speed in School Zone.
( ) Speeding 16 MPH above posted speed limit base wide (does not include Richardson Highway):
( ) 30 day suspension
( ) Failure to comply with minimum insurance requirements; bringing in proof of insurance will dismiss ticket.
( ) 90 days; 1st offense. ( ) 1 year; 2nd offense or driver in accident regardless of fault.
( ) Driving while installation or state driving privileges are suspended/revoked:
( ) 2 year revocation (*Suspension/Revocation will take effect immediately)
( ) Motorcycle personal protective equipment (PPE) violation.
( ) Persons under 21 years of age operating a motor vehicle after consuming alcohol:
( ) 2 years
( ) Open Container violation: A person may not drive a motor vehicle on a highway or area when there is an open bottle, can or other receptacle containing alcoholic beverage in the passenger compartment of the vehicle except in the truck or behind the last upright seat in a motor home, station wagon, hatchback, or similar (trunk-less) vehicle, except as provided in AS 28.33.130. A person who violates this section is guilty of an infraction.
( ) Driver; 30 day suspension ( ) Passenger found with open container; 30 day suspension
( ) Other incident not on the aforementioned list which warrants suspension or revocation of installation driving privileges (i.e., any violation while on probation, no valid license, accumulation of points or citations).

_____ _____
(Specific Offense) (Suspension Period)

3. If you contest this suspension/revocation, you are entitled to request an administrative hearing within 7 calendar days of receipt of this notice. To request an administrative hearing you will need to submit a written request. Include all statements and documents you plan to present at the hearing with your request. The request will be addressed to 354 MSG/CC and delivered to 354 SFS/Reports and Analysis, Room 106, 451 Division Street, Eielson AFB, AK 99702. Reports and Analysis duty hours are Monday-Friday 0730-1630.

The information herein is FOR OFFICIAL USE ONLY (FOUO) information which must be protected under the Freedom of Information Act (5 U.S.C 552) and/or the Privacy Act of 1974 (5 U.S.C. 552a). Unauthorized disclosure or misuse of this PERSONAL INFORMATION may result in disciplinary action, criminal and/or civil penalties.

Attachment 3

PRELIMINARY REVOCATION OF INSTALLATION DRIVING PRIVILEGES FOR DUI OR REFUSAL

Figure A3.1. Preliminary Revocation of Installation Driving Privileges for DUI or Refusal.

DEPARTMENT OF THE AIR FORCE
PACIFIC AIR FORCES

DATE:_____

MEMORANDUM FOR _____ _____
(Subject's Name) (Subject SSN)

FROM: 354 MSG/CC
354 Broadway Ave Unit 12A
Eielson AFB AK 99702-1897

SUBJECT: Preliminary Suspension/Revocation of Installation Driving Privileges for DUI or Refusal

1. Reference Air Force Instruction 31-218(I), *Motor Vehicle Traffic Supervision*, and Air Force Manual 31-116, *Air Force Motor Vehicle Traffic Supervision*.

2. On _____ at _____ hours, you were apprehended, detained or cited for:

( ) Driving Under the Influence:
( ) One Year: 1st Offense ( ) Two Year: 2d Offense, if occurred within 5 years of previous offense

( ) Implied Consent (Refusal to submit or failure to complete chemical tests):
( ) One Year

3. Your driving privileges on Eielson Air Force Base, Alaska, and all other military installations, are suspended/revoked. Additionally, you may not operate government vehicles on or off-base.

4. If you contest this suspension/revocation you are entitled to request a rebuttal or hearing within 7 calendar days of receipt of this notice. To rebut a suspension/revocation you will need to submit a written request. Include all statements and documents you wish to be included in your rebuttal with your request. The request will be in MFR format, endorsed by your commander and delivered to 354 SFS/Reports and Analysis, Room 110, 451 Division Street, Eielson AFB, AK 99702. Reports and Analysis duty hours are Monday-Friday 0730-1630. If you do not request a rebuttal, this revocation will remain in effect for _____, effective_____ through_____.
(Days Suspended) (Start Date) (End Date)

5. If you request a rebuttal or hearing, every effort will be made to have a decision within 14 calendar days of your request. At the conclusion of the rebuttal process your driving privileges will either be suspended/revoked for the period stated in paragraph 3, or the pending suspension/revocation will be voided. This decision will be based on the evidence presented in your rebuttal package. Reports and Analysis will notify you of the results as soon as possible. If your suspension is upheld, you will be provided the date and time that your suspension/revocation will go into effect. If you do not contest the charges, but would like to request restricted driving privileges, follow the procedures stated in paragraph 6 of this letter. A rebuttal for driving under the influence will only cover the following:

a. Whether or not the law enforcement had reasonable grounds to believe you were driving under the influence.

b. Whether or not you were lawfully cited or apprehended for driving under the influence.

c. Whether or not you were lawfully requested to submit to a test for alcohol or other drug content of blood, breath, or urine and were informed of the consequences of refusal to take or complete the test.

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